
CITY COUNCIL REGULAR MEETING

DATE: August 18, 2026

SUBJECT: Consideration of a Development Agreement with Mountain
Cement Company

PRESENTED BY: Ed Bull, City Attorney

ITEM DESCRIPTION

This Development Agreement is an agreement between the City of Evans and Mountain Cement Company in which Mountain Cement agrees to participate in improvements of the “haul road” from their facility on WCR 33/47th Avenue to WCR 46. Participation is agreed to be 40% of the costs of paving the haul road with a not to exceed 40% of \$1.5 million. This agreement does not obligate the City to improve the roadway unless funds are appropriated and the City Council approves the expenditure in the budget. This agreement is valid for approximately 5 years with up to a possible 6 month automatic extension if permanent improvement construction is started sometime in the fourth year of the agreement.

FINANCIAL SUMMARY

N/A

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RECOMMENDATION

Staff recommend City Council approve the Development Agreement

SUGGESTED MOTIONS

"I move to approve the Development Agreement between the City of Evans and Mountain Cement Company."

ATTACHMENTS

- Development Agreement